

of \$1,612.50 ([1.5 x \$425] + [1 x \$550]). Thus, the total reduction from the lodestar is \$4,913 (\$3,045 + \$255 + \$1,612.50). This results in a reduced fee award of \$10,517.50 (\$15,430.50-\$4,913).

Further, there will be no multiplier. The purpose of the lodestar enhancement is “to bring financial incentives for attorneys enforcing important constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis.” (*Ketchem v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking the enhancement has the burden of proof. (*Id.* at 1138.) “[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable.” (*Id.* at 1138.)

Here, there is no reason for an enhancement; this is merely double billing. This was not a complicated case, there was no exceptional quality of work, and the alleged risk due to counsel’s contingency fee should already be accounted for in counsel’s hourly rate.

Costs

Under C.C.P. §1032(b), unless otherwise provided, “a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” Again, there is no dispute that Plaintiff is the prevailing party. C.C.P. § 1033.5(a) contains a list of items specifically allowed as recoverable costs, and § 1033.5(b) contains a list of items that “are not allowable as costs, except when expressly authorized by law.” An item neither specifically allowable under subdivision (a) nor prohibited under subdivision (b) may be allowed or denied in the discretion of the court if certain requirements are satisfied. (C.C.P. § 1033.5(c)(4).)

“A verified memorandum of costs is prima facie evidence of their propriety,” and the opposing party has the burden to demonstrate that they are not proper. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266.) A verified memorandum does not require copies of bills, invoices or other documentation to be attached. (*Id.* at 1267.) If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (*Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 773-774.) If the items are properly objected to, they are put in issue, and the burden of proof is on the party claiming them as costs. (*Id.* at 774.)

Here, Plaintiff filed a Memo of Costs seeking \$1,622.35 in costs incurred in this action. All of the costs sought appear to be proper, and Defendant raised no objections to any of the costs.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2505175	SV VALENCIA EUROPEAN INC. VS BMW OF NORTH AMERICA, LLC	DEMURRER ON 1ST AMENDED COMPLAINT OF SV VALENCIA EUROPEAN INC. BY BMW OF NORTH AMERICA, LLC

Tentative Ruling: No tentative ruling. Hearing will be conducted on Thursday, September 10, 2026, 8:30 a.m., Department PS2.